

26NNCV05103 26NNCV05103

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Case Number: 26NNCV05103 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

DEMURRER

Los

Angeles Superior Court Case # 26NNCV05103

MP: Defendant

GOR Enterprises, Inc. dba Paradise Pastry & Cafe

RP: Plaintiff

Alisa Galstyan

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Alisa Galstyan ("Plaintiff")

alleges that on July 4, 2024, GOR Enterprises, Inc. dba Paradise Pastry & Cafe ("Defendant") poured scalding hot tea into defective paper cups with an unsecured, defective lid, placed them on a plastic tray, and handed them to Plaintiff to carry to her seat.

Plaintiff alleges that the hot tea caused thermal degradation of the paper cups/lids, such that their structural integrity was compromised, causing the seam to open and tea to pour onto the tray.

Plaintiff contends the force of the tea spilling onto the tray, caused the other cup of tea to fall over, spilling hot tea from both cups onto Plaintiff, causing her to sustain injuries.

The Complaint, filed June 26, 2026, alleges: (1) General Negligence; (2) Premises Liability; and (3) Products Liability.

MOTION ON CALENDAR:

On August 5, 2026, Defendant filed a Demurrer to the Complaint. On August 25, 2026, Plaintiff filed an opposition. On September 2, 2026, Defendant filed a reply.

LEGAL STANDARD

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural*

Materials Co. (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

MEET AND

CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Motooka Decl., ¶¶3-6, Exs. A-B.)

ANALYSIS:

Defendant demurs to the Second Cause of Action for Premises Liability, arguing it fails to allege sufficient facts to constitute a cause of action against it, it is duplicative of the First Cause of Action for General Negligence, and it is uncertain.

The elements of a premises liability claim and negligence claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.

(Kesner v. Superior Court
(2016) 1 Cal.5th 1132, 1158.)

The allegations

of the First Cause of Action are summarized under the "ALLEGATIONS" portion above. Plaintiff further contends in the General Negligence Cause of Action that by serving tea that was too hot for human consumption into a defective paper cup

with defective, unsecured lids, Defendants created a dangerous condition that resulted in Plaintiff sustaining severe burns.

She alleges that either the cup or

the glue was made from materials that could not withstand the hot tea. She alleges Defendant was negligent in brewing, packaging, serving, inspecting, managing,

supervising, controlling and/or operating the premises; in hiring, training,

supervising, controlling, and/or monitoring employees and agents responsible

for the brewing, preparing, packaging, serving hot liquids and the inspections,

supervision, control, and operations; in failing to provide service of hot

liquids that were safe and free from harmful and injurious conditions, that are

safe and reasonably fit for human consumption.

(Compl. at p.4.)

In the Second Cause of Action for

Premises Liability, Plaintiff alleges that she sustained injuries when

Defendant negligently served her scalding hot tea in a defective cup with an unsecured, defective lid. She alleges

the tea was too hot for human consumption and compromised the structural

integrity of the defective paper cup and lid, causing the seam to break open

and give way under the tea's heat. She

contends this caused the tea to pour out onto the tray, knocking over the other

cup of overly hot tea and onto Plaintiff. She alleges that either the cup or

the glue was made from materials that could not withstand the hot tea, such

that the materials were not of adequate quality for the intended use. She asserts that Defendant's negligence

created a dangerous condition on its property located at 1825 West Glenoaks,

Glendale, CA 91201. She is informed and

believes that the hazardous, dangerous conditions were caused by Defendant

and/or existed for a sufficient time prior to the incident for Defendant to

have corrected, removed, and/or warned Plaintiff of the existence of said

conditions. (Compl. at p.5.)

While Plaintiff alleges that the subject

incident occurred on Defendant's premises, Plaintiff has not alleged facts that

there was a physical condition of the premises itself that caused her injury.

(See *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 673 ["A possessor of

land is subject to liability for physical harm caused to his invitees by a

condition on the land if, but only if, he [¶] (a) knows or by the exercise of

reasonable care would discover the condition, and should realize that it

involves an unreasonable risk of harm to such invitees, and [¶] (b) should

expect that they will not discover or realize the danger, or will fail to

protect themselves against it, and [¶] (c) fails to exercise reasonable care to protect them against the danger.”] [quoting the Restatement of Torts Second, section 343].) At most, Plaintiff alleges that a cup and/or lid were defective or that Defendant allowed service of scalding hot tea in the cup atop a tray, but she has not alleged any facts that there was anything dangerous about the conditions of the premises, such as uneven or cracked flooring, a wet substance on the floor, slippery floors, etc. Thus, the demurrer is sustained on the ground that the Premises Liability claim fails to allege sufficient facts against Defendant.

Next, as currently worded, the Premises Liability claim is duplicative of the General Negligence claim, as it relies on the same facts that the tea was scalding hot and the cup/lid were defective in some way. This too will be a ground to sustain the demurrer.

The demurrer to the Second Cause of Action is sustained. As this is Plaintiff's first attempt at the pleadings, the Court will allow leave to amend.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant GOR

Enterprises, Inc. dba Paradise Pastry & Cafe's Demurrer came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The

Demurrer to the SECOND CAUSE OF ACTION IN THE complaint IS SUSTAINED WITH 20
DAYS' LEAVE TO AMEND.

Defendant
TO GIVE NOTICE.

IT IS SO ORDERED.